

Calendar Line # 2
Case Name Wells Fargo Bank, N.A. vs Dung Tran
Case No. 22CV409329
Motion to Vacate and Enter Judgment
<u>I. BACKGROUND</u> Before the court is a collections case stemming from Plaintiff Wells Fargo Bank, N.A. (“Wells Fargo”)’s Complaint filed on December 29, 2022, alleging four causes of actions, including breach of contract against Defendant Dung Tran (“Tran”). (Complaint). Plaintiff states that the underlying damages amounts to \$4,369.13. (<i>Id.</i>). On May 5, 2023, the parties filed a notice of settlement. Pursuant to the stipulation, Defendant agreed to a total of \$4,360.16 by way of monthly payments of \$273.00 or more beginning on March 26, 2023 through and including May 26, 2024, followed by a final payment of \$265.13 on or before June 26, 2024. (Motion, p. 3). On January 16, 2026, Plaintiff Wells Fargo filed this motion to vacate notice of settlement and enter judgment pursuant stipulation under Code of Civil Procedure section 664.6. The motion was accompanied by a proof of service indicating mail service to the debtor/Defendant Tran on January 14, 2026. Plaintiff asserts that Defendant rendered \$4,087.13 and failed to remit any further payment. (<i>Id.</i>). On September 16, 2024, Plaintiff sent a letter informing Defendant about the outstanding payment and seeking default. (<i>Id.</i>). The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on September 1, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the moving papers, including the notice of motion and memorandum of points and authorities (“MPA”) (totaling 4 pages); Declaration of Edgar B. Lopez and attached Exhibits 1-2 (totaling 13 pages); notice of non-compliance (totaling 1 page); proof of service and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 664.6: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6). Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (<i>Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.</i> (2002) 103 Cal.App.4th 30, 37). Accordingly, “parties” under section 664.6 means the litigants themselves, not their attorneys. (<i>Levy v. Superior Court</i> (1995) 10 Cal.4th 578, 586 (holding “we conclude that the term ‘parties’ as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.”)). Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (<i>J.B.B. Investment Partners, Ltd. v. Fair</i> (2014) 232 Cal.App.4th 974, 985). “Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (<i>Weddington Prods., Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (<i>Id.</i>) The court may

not “create the material terms of a settlement,” and must instead decide on what terms the parties agreed upon. (*Id.*; *Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1460; *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565-566). “In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone.” (*Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994).

III. ANALYSIS

Here, Plaintiff Wells Fargo asserts that the parties entered into a settlement agreement pursuant to Code of Civil Procedure section 664.6 on October 2, 2024. (Exhibit 1 attached to Declaration of Edgar B. Lopez “Lopez Decl.” ¶ 3). The Plaintiff filed a notice of settlement on May 5, 2023. (Motion, p. 3). The total settlement agreement was for Defendant Tran to pay Plaintiff \$4,360.16 for the account balance. (Lopez Decl. ¶¶ 4 and 8). It is undisputed that the Defendant made a total payments of \$4,087.13. (*Id.*, at ¶ 5). Thus, the remaining balance is \$273.00. Plaintiff also seeks \$300.00 in costs comprised of \$225.00 in filing fees and \$75.00 in service of process fees. (*Id.*, at ¶ 9). Plaintiff waives prejudgment legal interest. (*Id.*). In total, Plaintiff now seeks to collect the remaining amount of \$573.00. (MPA, p. 4).

The agreement also addressed that failure to comply with the payment schedule may result in a default. (Lopez Decl. ¶ 6; Exhibit 2). The written settlement agreement indicated the total amount, scope, and payment terms of the settlement. The settlement agreement was signed by all the parties to the agreement and filed with the Court. (*Id.*). On September 16, 2024, Plaintiff sent the defendant a letter seeking payment of the balance and reiterated the terms of the agreement. (*Id.*). Thus, Plaintiff has met its burden.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on September 1, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION :

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter judgment in favor of Plaintiff in the amount of \$573.00 against Defendant Tran. The Court will prepare the Order

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Calendar Line # 3
Case Name Zhao Zheng vs Ming Lin
Case No. 23CV416606
Motion for Terminating and Monetary Sanctions I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a partition of single-family residence located at 1563 Mackey Avenue, San Jose, California (“Subject Property”) that is co-owned by Plaintiff/Cross Defendant Zhao Hui Zheng (“Zheng”) and Defendant/Cross Complainant Ming Zhang Lin (“Lin”). Plaintiff filed her Complaint on May 23, 2023 alleging three causes of actions: (1) partition; (2) declaratory relief; and (3) accounting. Defendant Zhang filed an Answer on July 20, 2023. On July 28, 2025, Defendant filed a Cross-Complaint alleging fraud, perjury and misrepresentation to the court, and constructive trust. Plaintiff Zheng filed a demurrer to the cross complaint that was sustained on May 19, 2026. B. RELEVANT PROCEDURAL BACKGROUND Plaintiff propounded initial discovery on Defendant including: Form Interrogatory (“FROG”), Special Interrogatory (SPRG); Request for Production of Documents (“RFPD”) on September 3, 2024. (Declaration of Woody Wu (“Wu Decl.”) ¶ 2; Exhibit A). Responses were due by October 8, 2024. (<i>Id.</i>, ¶ 3). Defense did not seek an extension and did not provide responses despite Plaintiff’s counsels attempts to meet and confer before filing a motion to compel. (<i>Id.</i>, ¶¶ 3-4). Subsequently, Plaintiff filed a motion to compel and request for sanctions. (<i>Id.</i>, ¶ 5). On April 23, 2025, the Honorable Shella Deen heard the unopposed motion and granted the motion, ordered Defendant to serve verified code-complaint responses and responsive documents and awarded Plaintiff sanctions in the amount of \$1,410.00, which Defendant was ordered to pay within 45 days of a formal order. The formal order was executed by Judge Deen on May 1, 2025. (<i>Id.</i>, ¶¶ 5-8; Exhibit B). From April 2025 to the January 2026, Plaintiff attempted to meet and confer with Defendant regarding the order, and potential need to file a motion for terminating and monetary sanctions. (<i>Id.</i>, ¶¶ 8-11). C. PRESENT MOTION Before the court is Plaintiff/Cross Defendant Zhao Hui Zheng (“Zheng”)’s motion for sanctions that was filed on January 6, 2026. The motion was accompanied by a proof of service indicating electronic on Defendant/Cross Complainant Ming Zhang Lin (“Lin”) on that same day. Plaintiff seeks terminating sanctions and seeks an order striking Defendant’s Answer and Cross-Complaint and monetary sanctions in the amount of \$3,260.00 against Defendant Lin for failure to comply with the May 1, 2025 Court Order. Plaintiff’s motion is based on Defendant’s failure to comply with discovery process and court orders. (Plaintiff’s motion, p. 2-3). Defendant Lin filed an opposition on August 31, 2026. On September 4, 2026, Plaintiff filed a reply brief. The Court has carefully reviewed the following: Plaintiff Zheng’s notice of motion, memorandum of points and authorities (“MPA”), Declaration of Woody Wu and attached Exhibits A-C (totaling 21 pages); Opposition filed by Defendant Lin (totaling 8 pages); Declaration of Ming Zhang Lin in support of the Opposition and attached Exhibits A–D (totaling 30 pages); Plaintiff Zheng’s reply brief (totaling 5 pages); Declaration of Woody Wu in support of the reply brief and attached Exhibit A (totaling 30 pages); proofs of services; and the pleadings. // //